

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE	OF	PAGES
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				☒ (X) ☐ ☐		9A. AMENDMENT OF SOLICITATION NUMBER 9B. DATED (SEE ITEM 11) 10A. MODIFICATION OF CONTRACT/ORDER NUMBER 10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

Previous edition unusable

STANDARD FORM 30 (REV. 11/2016)
Prescribed by GSA FAR (48 CFR) 53.243

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section 00 21 00 - Instructions

Miscellaneous text in this section has been modified to:

INSTRUCTIONS TO OFFERORS

1. GENERAL

1.1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

1.2 GENERAL OVERVIEW OF CONTRACT SCOPE

2. BASIS FOR AWARD

3. EVALUATION FACTORS FOR AWARD

4. PROPOSAL REQUIREMENTS

4.1 PRE-PROPOSAL CONFERENCE AND SITE VISIT

4.2 PROPOSAL SUBMISSION INSTRUCTIONS

4.3 PRE-PROPOSAL INQUIRIES

4.4 CONTRACT OPPORTUNITIES

4.5 SPECIAL JOINT VENTURE (JV) REQUIREMENTS

5. ATTACHMENTS: Will be located on Contract Opportunities under additional documents.

5.1 PRE-PROPOSAL INQUIRY FORM (ATTACHMENT A)

5.2 CONSTRUCTION EXPERIENCE PROJECT DATA SHEET (ATTACHMENT B)

5.3 PAST PERFORMANCE QUESTIONNAIRE (ATTACHMENT C)

5.4 SCHEDULE B PRICE PROPOSAL FORM (ATTACHMENT D)

5.5 SPECIFICATIONS (ATTACHMENT E)

5.6 DRAWINGS (ATTACHMENT F)

5.7 REPRESENTATIONS AND CERTIFICATIONS (ATTACHMENT G)

1. GENERAL

1. 1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

1.1.1 This acquisition is being issued on an UNRESTRICTED basis with full and open competition, as a Design Bid-Build procurement conducted as a negotiated procurement utilizing procedures in accordance with FAR Part 36. The best value continuum source selection process used in this acquisition is the tradeoff process. This process allows for a tradeoff between non-price factors (i.e., Construction Experience, Technical Solutions, Safety and Past Performance), and price, and allows the Government to accept other than the lowest priced proposal or other than the highest technically rated proposal to achieve a best-value contract award. Award will be made to that responsible offeror whose proposal, conforming to the solicitation, is determined to offer the best value to the Government, considering the technical and price factors stated herein.

1.1.2 The appropriate Northern American Industry Classification System (NAICS) code for this procurement is 236210 and the size standard is \$45M.

1.1.3 This acquisition will be advertised utilizing FAR Part 15 - Contracting by Negotiation and FAR Part 36 - Construction and Architect-Engineer Contracts.

1.1.4 This acquisition will result in a firm fixed price contract for design-bid-build construction services. Award will be made in U.S. Dollars. In accordance with DFARS 236.204, the magnitude of construction for this project is between \$25,000,000 and \$100,000,000.

1.1.5 The contract completion time for P1360 is 550 calendar days from Notice to Proceed.

1.2 GENERAL OVERVIEW OF CONTRACT SCOPE

1.2.1 This project will construct a space for administration and support, maintenance and storage, communication equipment, and logistics support area. Project areas for emergency power resiliency, such as emergency power generators, and uninterruptible power supply. The facility also includes a vault to support communication systems.

1.2.2 Contractor Performance Information: Contractor's performance will be evaluated using the respective contractor performance evaluation report entry system located on the website: <https://www.cpars.gov>. Prior to commencement of work the contractor is required to provide the Government with the name, phone number and email address of the "Contractor's Representative" that will be responsible for receipt and review of draft performance evaluations prepared by the Government in the appropriate system. It is the contractor's responsibility to keep this contract information current.

2. BASIS FOR AWARD

2.1.1 The Government reserves the right to eliminate from consideration for award any or all offerors at any time prior to award of the contract; to negotiate with offerors in the competitive range; and to award the contract to offeror submitting the proposal determined to represent the best value - the proposal most advantageous to the Government, price and other factors considered.

2.1.2 As stated in the solicitation, the Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

2.1.3 The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.

2.1.4 Factor 3-Safety will only be rated Acceptable or Unacceptable. If an offeror is rated Unacceptable for any factor, they will not be eligible for award, unless the deficiency(ies) is/are remedied through discussions (if held). For the offerors found Acceptable on Factor 3-Safety, the relative order of importance of the non-price evaluation factors is the technical factors (Factor 1-Construction Experience and Factor 2- Technical Solution) are of equal importance to each other and, when combined are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 4-Past Performance). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are approximately equal to price.

2.1.5 Award will be made on the total sum of CLINS 0001 through 0004. The Government intends to award a contract to a single contractor for CLIN 0001, with CLINs 0002 through 0004 as priced options. The Government reserves the unilateral right to award CLINs 0002 through 0004 to the Contractor at the proposed price at the time of award or within 365 calendar days after the contract award. A firm fixed proposed price is required for ALL CLINs (CLINS 0001 through 0004). No provision is made for economic price adjustment. Offerors who do not submit prices for all CLINs will be considered nonresponsive to the solicitation and will not be evaluated.

2.1.6 The Government intends to issue the Solicitation through the Internet at <https://sam.gov>. All prospective offerors MUST register themselves on the website. All contractors are encouraged to attempt downloading the documents prior to obtaining the solicitation through alternate sources. Many firms and commercial printing services have the capability to print the solicitation package and plan-holder's list from the Internet, if necessary. The official plan-holder's list will be created by registration and will be available from the website only. Amendments will also be posted on the website for downloading. This will be the normal method for distributing amendments; therefore, it is the offeror's responsibility to check the website periodically for any amendments to this solicitation.

2.1.7 SYSTEM FOR AWARD MANAGEMENT:

To be eligible for award, your firm(s) must be registered in the System for Award Management (SAM) database as required by FAR 52.204-7, System for Award Management (Oct 2018).

Note that the System for Award Management (SAM) registration is required for all offerors; including Joint Ventures (JV) (registration must state the NAME of the JV). Offerors not currently registered in SAM must obtain a Unique Entity Identifier (UEI) and a CAGE or NCAGE prior to registering in SAM.

All offerors, including JV offerors, must submit with their proposal a UEI. In addition to the UEI required for JV offerors, JV offerors must submit with their proposal a UEI number for each member comprising the JV. UEIs can be obtained at <https://sam.gov/content/entity-registration>. The UEI is required in order to register in SAM (see above).

CAGE/NCAGE - A CAGE/NCAGE code is required for all offerors, including JV offerors. JV offerors must acquire a CAGE Code registered in the JV name.

(a) U.S. offerors, including Joint Venture offerors: U.S. offerors must obtain a CAGE Code prior to registering in the SAM database, part of the SAM registration process (see paragraph above).

(b) Non-U.S. (foreign) offerors ONLY, including JV offerors: Non-U.S. offerors must obtain a NATO CAGE (NCAGE) Code instead of a CAGE Code prior to registering in the SAM database. NCAGE codes may be obtained at the NCAGE website <https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>.

IMPORTANT NOTICE: If the offeror is registering a new entity in SAM.gov, the offeror must follow new procedures, which include providing an original, signed notarized letter indicating authorized entity Administrator for the entity associated with the UEI before a new SAM.gov entity registration will be activated.

IT IS HIGHLY RECOMMENDED FOR THE NEW REGISTRANTS TO CHECK WITH SAM.GOV HELPDESK DIRECTLY TO ENSURE THAT ALL REQUIREMENTS FOR TIMELY REGISTRATION ARE MET.

2.2.1 ENGLISH SPEAKING REPRESENTATIVE:

At all times when any performance of the work at the site is being conducted by any employee of the Contractor or its subcontractors, the Contractor shall have a representative present on the site capable of explaining the work operations and receiving instructions in the English language. The Contracting Officer shall have the right to determine, without appeal of such decision, whether the proposed representative has sufficient technical and lingual capabilities, and the Contractor shall immediately replace any individual not acceptable to the Contracting Officer.

2.2.2 PERFORMANCE GUARANTEE:

PERFORMANCE GUARANTEE
Ten Percent (10%) PERFORMANCE GUARANTEE

Submittal Time: The offeror whose offer is accepted shall, within ten (10) days after award, furnish either (1) a Performance Guarantee and a notarized Performance Guarantee Letter conforming to the requirements below, or (2) Performance and Payment bonds conforming to the requirements below. If the offeror fails to provide either (1) a Performance Guarantee and a notarized Performance Guarantee Letter, or (2) Performance and Payment Bonds within ten (10) days, the contract may be terminated for default. In such event, the offeror shall be liable for any cost of procuring the work which exceeds the amount of its offer. Clauses 52.228-2, 52.228-11 and 52.228-15, listed in Section 01 00 00 - General Requirements below, will apply only if the offeror elects to submit payment and performance bonds, rather than a notarized performance guarantee, with their proposal.

Form of Performance Guarantee: The Performance Guarantee shall be an amount equal to ten percent (10%) of the amount of the contract and shall be deposited into a banking institution, as acceptable to the Contracting Officer, which will then issue an irrevocable letter guaranteeing (the "Performance Guarantee Letter") the payment of the amount deposited to the United States Government, upon demand by the Contracting Officer. Demand may be made if the Contractor fails to comply with the terms and conditions of the contract or does not fulfill its undertaking in whole or in part. Payment to the Contracting Officer will be by check made payable to the "United States of America by the U.S. Department of the Navy, Naval Facilities Engineering Systems Command, Europe, Africa, Central." The Performance Guarantee shall take effect upon the date of signature of the Performance Guarantee Letter and shall remain valid and irrevocable until one (1) year after the work has been finally inspected and accepted by the Government. The Performance Guarantee Letter shall be accompanied by a notarized document authenticating the financial institution's authority to sign the letter. An English translation of the Performance Guarantee Letter shall be submitted concurrently.

Upon acceptance of all work by the Government, however, the Contractor may, with the approval of the Contracting Officer, replace this guarantee with a reduced guarantee in the amount of four percent (4%) of the then existing contract price, with modifications, if any. Such replacement guarantee will then remain in effect for one (1) year after the final acceptance of the work by the Government.

The performance guarantee/performance and payment bonds shall be in the name of the proposed Offeror. If the Offeror is a Joint Venture (JV), the guarantee/bonds shall be in the name of the JV.

SAMPLE OF PERFORMANCE GUARANTEE ISSUED BY A BANK

The Government will accept as valid a Performance Guarantee conforming to these requirements.

BANK LETTERHEAD

Date
To: United States of America
U.S. Department of Navy
Contracting Office (FEA/IPT put in your address)

Attention: Contracting Officer

This is a letter of performance guarantee. I/We, the undersigned, acting as the duly authorized representative(s) of the Bank, declare that the Bank hereby guarantees and is jointly and severally liable as guarantor with the contractor named below to effect payment to the Contracting Office that issued the contract stated below, by check made payable to the "United States of America by the U.S. Department of the Navy, Naval Facilities Engineering Systems Command, Europe, Africa, Central," within five (5) calendar days after receipt of a simple written request by registered mail, return receipt, in amount up to sum of (Amount equal to ten (10%) percent of the contract amount in the currency stated in the contract), which represents the deposit required of the Contractor to guarantee fulfillment of his obligations for the satisfactory completion and timely performance of the work under Contract No. (insert contract number) for (insert description of services and location), in strict compliance with the terms, conditions and specifications of said contract entered into between the United States of America by the U.S. Department of Navy, Naval Facilities Engineering Systems Command, Europe, Africa, Central and the Contractor (insert name of Contractor) on (insert contract date), plus legal interest to be calculated from the date of receipt of the registered letter of request by the Contracting Officer to the date of actual payment, without any need for the Contracting Officer to take any legal action or obtain the prior consent of the Contractor, or for any other proof, action or decision by any other authority. The request by the Contracting Officer shall simply inform the Bank that the Contractor failed to comply with the terms and conditions of the contract, or did not fulfill his undertaking in whole or in part.

I/We agree and consent that said contract may be modified by change order or supplemental agreement affecting the amount or the period of performance of the contract without prior consent of the Bank and without affecting the validity of this guarantee; provided, however, that the amount of this guarantee shall remain unchanged.

This letter of performance guarantee will continue in effect without change in amount or terms until one year after the work has been finally accepted by the Government through its Contracting Officer's legal representative.

(BANK NAME & ADDRESS) (CONTRACTOR NAME & ADDRESS)

Signed by: Signed by:

(Typed name) (Typed name)

(Title) (Title)

(This Performance Guarantee shall be accompanied by a notarized document authenticating the bank agent's authority to sign the letter of performance guarantee for the bank company.)

Optional Performance and Payment Bonds: In lieu of a performance guarantee, the offeror may submit Performance and Payment Bonds in which the offeror and the surety obligate themselves in the amount of one hundred percent (100%) of the contract price, that the offeror shall undertake the performance of the contract if it receives award, shall make all required payments to subcontractors, and that said Performance and Payment Bonds ensure the fulfillment of all agreements contained in the contract. To be considered for acceptability, the offeror(s) shall submit Performance and Payment Bonds that meet the following requirements:

- (a) The bonds shall be furnished within 10 days after receipt of award and shall each be in a penal sum equal to 100% of the contract price;
- (b) The bonds shall be from a bank or other financial institution, either of which must first be approved by the Contracting Officer; and
- (c) The bonds shall be of the U.S. standard type or of another type approved by the Contracting Officer and shall include the following concepts: (1) name of Surety and name of agent signing in behalf of Surety; (2) name of Principal; (3) a statement that the Principal and Surety are firmly bound on the United States of America in the penal sum of the bond; (4) Contract number; (5) Penal sum of bond and the statement "This bond will be in force until the Contracting Officer of the above-cited Contract authorized cancellation of the bond"; and (6) date of issuance of bond and signature of Surety's agent.

Contract Timing: Regardless of when performance and payment bonds or the Performance Guarantee and Performance Guarantee Letter are provided, the contract time for purposes of fixing the completion date, default, and liquidated damages shall begin to run 550 days from the notice to proceed.

3. EVALUATION FACTORS FOR AWARD

3.1.1. The solicitation requires the evaluation of price and the following non-price factors:

- Factor 1 - Construction Experience
- Factor 2 - Technical Solution
- Factor 3 - Safety
- Factor 4 - Past Performance

The distinction between experience and past performance is that experience pertains to the volume of work completed by a contractor that are comparable to the types of work described under the definition of recent, relevant projects, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

Factor 3-Safety will only be rated Acceptable or Unacceptable. If an offeror is rated Unacceptable for any factor, they will not be eligible for award, unless the deficiency(ies) is/are remedied through discussions (if held). For the offerors found Acceptable on Factor 3-Safety, the relative order of importance of the non-price evaluation factors is the technical factors (Factor 1-Construction Experience and Factor 2- Technical Solution) are of equal importance to each other and, when combined are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 4-Past Performance). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are approximately equal to price.

The importance of price will increase if the Offerors' non-price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

3.2 Basis of Evaluation and Submittal Requirements for Each Factor.

(a) Price:

(1) Solicitation Submittal Requirements:

Price shall be submitted on the Price Proposal Schedule included in the solicitation. The Offeror shall submit one (1) electronic copy via PIEE in accordance with the solicitation submittal requirements identified below. Price information included in the non-price proposal will not be considered. Likewise, non-price information included in the price proposal will not be considered.

The Offeror is required to submit a complete Price Proposal Schedule that includes completion of all contract line items numbers (CLINs). Pricing information is not required to be completed under Section 00 10 00 - Solicitation Contract Form in SF 1442. All required proposal documents shall be submitted in accordance with FAR 15.208. Each electronic copy must be formatted as a single .pdf searchable file.

All submissions shall include the following:

- Include a cover page with Solicitation Number, Solicitation Title, Prime Contractor Name, Address, Phone Number, Fax Number, Unique Entity ID, Cage Code, Point of Contact, Phone Number, and E-mail address;
- Completed SF-1442 signed with all amendments acknowledged;
- Completed Schedule B, Price Proposal Schedule (Attachment D);
- Copy of Representation and Certifications from System for Award Management (SAM);
- Completed Solicitation Representations and Certifications (Attachment G) (Note: Some of these certification provisions/clauses may not be included in SAM, offerors are cautioned to closely review and separately provide completed certifications in response to these full text provisions/clauses);
- and Required Responsibility Determination Information

The offeror is required to submit a complete Price Proposal Schedule that includes completion of all contract line-item numbers (CLINs).

If there is a difference between a unit price and the extended total, the unit price will be held to be the intended bid, and the total will be recomputed accordingly. If an offeror provides a total but fails to enter a unit price, the total divided by the specified quantity will be held to be the intended unit price.

The Government reserves the unilateral right to award Options; CLIN 0002, CLIN 0003, and CLIN 0004 to the Contractor at the proposed price within 365 calendar days after the contract award. A firm fixed proposed price is required for all CLINS. No provision is made for economic price adjustment. If Options are exercised, the contract completion date remains 550 calendar days after award of the contract.

The Government may reject an offer as nonresponsive if it is materially unbalanced as to prices for the basic requirement and the option quantities. An offer is unbalanced when it is based on prices significantly less than cost for some work and prices which are significantly overstated for other work.

If any of the Option CLINs; CLIN 0002, CLIN 0003 and/or CLIN 0004 are exercised, additional bonding and consent of surety shall be required. Consequently, the Performance Bond must reflect 100 percent of the aggregate amount of all Items.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION - In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards.

No purchase or award shall be made unless the Contracting Officer makes an affirmative determination of responsibility. To be determined responsible, a prospective contractor must have adequate financial resources to perform the contract, or the ability to obtain them. The Contracting Officer shall require acceptable evidence of the prospective contractor's current sound financial status, as well as the ability to obtain required resources if the need arises. In regard to resources, the contractor must be prepared to present acceptable evidence of subcontracts, commitments or explicit arrangements that will be in existence at the time of contract award, to rent, purchase or otherwise acquire the needed facilities, equipment, services, materials, other resources or personnel. Consideration of a prime contractor's compliance with limitations on subcontracting shall be taken into account for the time period covered by the contract base period or quantities, plus option periods or quantities, if such options are considered when evaluating offers for award. Pursuant to FAR 9.104-4, the Contracting Officer reserves the right to request adequate evidence of responsibility on the part of any prospective subcontractor(s). In the absence of information clearly indicating that the prospective contractor is responsible, the Contracting Officer shall make a determination of non-responsibility. As a minimum requirement, all offerors are requested to submit, as part of the price proposal submissions, the following:

In a separate Tab, in the English language, the offeror shall provide the following information in the price proposal package:

1. One (1) Signed Bank Reference demonstrating adequate financial resources. If offeror's firm has a line of credit - provide information on how many figures offeror can borrow against the line of credit (i.e. medium 6 figures - exact line of credit is not required).
2. The offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror.
3. Point of contact from a bank or any financial institution with which the offeror transacts business.

Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms part of the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

(2) Basis of Evaluation:

The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items, if applicable. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.

(i) Non-price Factors:

Solicitation Submittal Requirements: The Offeror shall submit one (1) electronic copy via PEE in accordance with the solicitation submittal requirements identified below. Price information included in the non-price proposal will not be considered. Likewise, non-price information included in the price proposal will not be considered:

All submissions shall include the following:

Text pages 8 1/2 x 11 format
12-point font, Times New Roman

Each electronic copy must be formatted as a single .pdf searchable file

Include a cover page with Solicitation Number, Solicitation Title, Prime Contractor Name, Address, Phone Number, Fax Number, Unique Entity ID, Cage Code, Point of Contact, Title, phone number, and email address

Signed Letter(s) of Commitment (as applicable)

If the prime offeror is a Joint Venture (JV), provide a copy of the JV Agreement, as well as any legal document that establishes the JV.

Offerors are reminded that, as per FAR 52.214-34, as incorporated herein, offers submitted in response to this solicitation shall be in the English language and any offers received in other than the English language shall be rejected.

FAR Part 9.6 defines Contractor team arrangements. Contractor team arrangement, as used in this subpart, means an arrangement in which -- (1) Two or more companies form a partnership or joint venture to act as a potential prime Contractor; or (2) A potential prime Contractor agrees with one or more other companies to have them act as its subcontractors under a specified Government contract or acquisition program.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent /LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent/LLC/LTD member companies will have involvement in the performance of the contract in order for the experience information of the affiliate/subsidiary/parent/LLC/LTD member companies to be considered. The proposal shall state specific commitments of technical resources (e.g., personnel, management, equipment that the affiliate/subsidiary/parent/LLC /LTD member companies shall commit to the performance of this contract). In particular, the proposal shall clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in the performance of the contract.

Vague commitments to support are likely insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited.

The Offeror shall submit a signed copy of partnership agreement, teaming agreement, or letter of commitment for each member of the Offeror's team (e.g., partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.) whose projects are submitted to demonstrate Construction Experience. The Government will not consider any project submitted for Factor 1 if it was performed by a firm other than the Offeror and there is no supporting partnership agreement, teaming agreement, or letter of commitment. Note: See specific restrictions on the use of subcontractor experience under Factor 1.

Factor 1 - Construction Experience:

(a) Solicitation Submittal Requirements:

The Offeror shall submit a maximum of five (5) relevant construction projects for the Offeror that best demonstrates experience on relevant projects that are similar in size, scope, and complexity to the RFP. For purposes of this evaluation, a relevant project is further defined as:

- A new administrative, industrial, or commercial facility that is a minimum of 1,000-Square Meters (10,764-Square Feet) or greater and has a construction value equal to or exceeding \$30,000,000 USD at the time of project completion. RENOVATION, REPAIR, OR ALTERATION of existing facilities shall not be submitted and will NOT be considered relevant. Submitted projects that include expansion of an existing facility footprint must clearly demonstrate a \$30,000,000 USD construction value of the expansion and an area of at least 1,000-Square Meters (10,764-Square Feet). Failure to provide the value in US dollars will result in the project being deemed irrelevant and ineligible for consideration.

- A project that was completed within the past ten (10) years of the date of issuance of this RFP.

In addition to the requirement that each project be relevant, the projects must aggregately demonstrate the following minimum requirements. Failure to meet these requirements will be deemed a deficiency that makes the proposal ineligible for award:

- At least one (1) relevant construction project shall demonstrate experience of new vertical construction.

A project is defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.

The attached Construction Project Data Sheet (Attachment B) is MANDATORY and SHALL be used to submit project information. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed (2) pages. Construction project values in Block 7 of Attachment B SHALL be provided in US Dollars.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP (i.e., unique features, area, construction methods). In addition, the description should also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third-Party Certification program.

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for the Joint Venture members. If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the offeror shall clearly demonstrate what portion of the work was performed by the JV member offering on this contract and shall not include work performed by the JV as a whole. The JV member proposed for this contract shall specifically address field work performed by that JV member including field staffing and direct field work oversight. The JV member proposed for this contract shall also address home office management performed by that JV member including the number/percentage of employees provided for the overall contract by the JV members as well as the overall percentage of work performed by the JV member. The Offeror shall also submit a SIGNED copy of the Joint Venture agreement indicating the proposed participation of each Joint Venture member. Offerors are still limited to a total

of five (5) projects combined.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract.

(b) Basis of Evaluation:

The basis of evaluation will include the Offeror's demonstrated breadth of experience and depth of experience in performing relevant construction projects as defined in the solicitation submittal requirements. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the RFP. The Government will only review five (5) projects for construction. Any projects submitted for construction experience in excess of the initial five (5) listed in the proposal will not be considered.

Offerors demonstrating relevant project experience with the United States Government may be considered more favorably than those that do not demonstrate this experience.

Projects completed by the named Offeror may be more favorably considered than those completed by entities other than the Offeror (i.e. joint ventures, affiliates, subsidiaries, etc.)

Factor 2 - Technical Solution:

(a) Solicitation Submittal Requirements:

Provide a narrative describing the technical solution to the project that meets the requirements of the RFP. Include the following:

- Summary of the technical approach, including the means/methods to complete the work, mitigation plans for anticipated problems, logistical challenges, and site constraints including but not limited to cultural and natural resource monitoring in accordance with Specification 01 57 19.
- A Project organizational chart that lists the key positions (at a minimum, Project Manager, Site Safety & Health Officer, Construction Quality Control Manager (QCM), Superintendent), for each specific discipline, as well as the communication flow with the Government, and subcontractors. The organizational chart shall clearly identify the lines of authority between the entities. If the experience of a significant subcontractor is being claimed in Factor 1, the firm must be named in the above narrative and organizational chart.

Provide a project schedule with a Gantt chart. Include the contract duration, all major submittals, including but not limited to long-lead procurement items such as electrical system equipment, and all major aspects of construction project. The contract timeframe identified in the RFP defines the acceptable maximum contract duration. Provide a narrative that explains the proposed contract duration.

Narrative shall not exceed ten (10) pages. In addition, provide schedule Gantt chart to graphically present the contract duration. The Gantt chart may be submitted on five (5) 11" x 17" or A3 page(s) that will not count against the page limitations for the narrative.

(b) Basis of Evaluation:

The Government will evaluate the narrative, organizational chart, and schedule, considering the extent to which the Offeror demonstrates a clear understanding of the requirements of the project. ~~A higher rating may be provided for a narrative that provides a matter of fact solutions to the logistical challenges of working in airfield environment.~~

The Government will evaluate the effectiveness of the technical solution to determine the likelihood that the work will be performed in accordance with the technical and logistical requirements of the RFP.

The Government will evaluate a comparison of the contractor's proposed contract duration and the acceptable maximum contract duration. The Government's evaluation of the contractor's proposed schedule is a means of determining whether the contractor understands the scope of work and approaches the tasks in a logical and effective manner consistent with the terms of the RFP.

A higher rating may be provided for a schedule that clearly identifies realistic and achievable construction durations, to include any environmental and cultural restrictions and logistics of soil import.

In addition, the contractor's proposed contract duration shall become an enforceable part of the contract and will be reflected in the awarded Contract Completion Date (CCD) to the successful Offeror.

Factor 3 - Safety:

(a) Solicitation Submittal Requirements:

The offeror shall submit the following information: (For a partnership or joint venture, only one safety narrative is required, but it must address each contractor who is part of the partnership or joint venture.)

Technical Approach to Safety:

Describe the offeror's technical approach to safety for its employees as well as the plan that the offeror will implement to evaluate and measure safety performance of potential subcontractors as a part of the selection process for all levels of subcontractors. Also, describe methods that the offeror will employ to ensure and monitor safe work practices at all subcontractor levels. The Safety Narrative, which shall include all information requested in this paragraph, shall be limited to three (3) pages.

(b) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The Government will evaluate the offeror's technical approach to safety for its employees, as well as its plan to select and monitor subcontractors. The Government may consult additional sources of information for evaluating safety including, but not limited to, Government agencies, OSHA, NAVFAC's Facility Accident and Incident Reporting (FAIR) and Contractor Incident Reporting System (CIRS) databases, and other related resources. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete safety information regarding these submittal requirements rests with the offeror.

The evaluation will collectively consider the following:

- (A) Offeror's Technical Approach to Safety
- (B) Other sources of information available to the Government

The Safety Factor will be rated on an Acceptable/Unacceptable basis.

Factor 4 - Past Performance:

(a) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 1 for Construction Experience. If there is not a completed CPARS evaluation, then submit Past Performance Questionnaires (PPQ) (Attachment C) for each project included in Factor 1 for Experience. The Offeror should provide completed PPQ in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Stacy Harper-Mitchell, stacy.l.harper-mitchell.civ@us.navy.mil. AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS IS AVAILABLE.

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1 - Construction Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed four (4) pages in total.

The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor.

Performance award or additional information submitted will not be considered.

(b) Basis of Evaluation:

This evaluation will consider how well the Offeror's team performed on relevant projects submitted under Factor 1 - Construction Experience and may also consider past performance on other relevant projects currently documented in known sources. Offerors may also address any adverse past performance issues. Explanations shall not exceed four (4) pages in total.

The Government will consider the recency and relevance of the information, the source of the information, context of the data, and general trends in the Contractor's performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the Offeror's team's past performance will be used as a means of evaluating the Offeror's team's probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will receive a NEUTRAL Confidence rating.

Past performance ratings of "Substantial Confidence" or "Satisfactory Confidence" hold more value than a "Neutral Confidence" rating and will be considered more favorably in the evaluation of past performance.

If a project is deemed to be not relevant, the past performance information for that project will not be evaluated.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION - In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards.

No purchase or award shall be made unless the Contracting Officer makes an affirmative determination of responsibility. To be determined responsible, a prospective contractor must have adequate financial resources to perform the contract, or the ability to obtain them. The Contracting Officer shall require acceptable evidence of the prospective contractor's current sound financial status, as well as the ability to obtain required resources if the need arises. In regard to resources, the contractor must be prepared to present acceptable evidence of subcontracts, commitments or

explicit arrangements that will be in existence at the time of contract award, to rent, purchase or otherwise acquire the needed facilities, equipment, services, materials, other resources or personnel. Consideration of a prime contractor's compliance with limitations on subcontracting shall be taken into account for the time period covered by the contract base period or quantities, plus option periods or quantities, if such options are considered when evaluating offers for award. Pursuant to FAR 9.104-4, the Contracting Officer reserves the right to request adequate evidence of responsibility on the part of any prospective subcontractor(s). In the absence of information clearly indicating that the prospective contractor is responsible, the Contracting Officer shall make a determination of non-responsibility. As a minimum requirement, all offerors are requested to submit, as part of the price proposal submissions, the following:

In a separate Tab, in the English language, the offeror shall provide the following information in the price proposal package:

1. One (1) Signed Bank Reference demonstrating adequate financial resources. If offeror's firm has a line of credit provide information on how many figures offeror can borrow against the line of credit (i.e. medium 6 figures - exact line of credit is not required).
2. The offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror.
3. Point of contact from a bank or any financial institution with which the offeror transacts business
Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms part of the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror, but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

(b) Basis of Evaluation:

The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items, if applicable. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.

4. PROPOSAL REQUIREMENTS

4.1 PRE-PROPOSAL CONFERENCE AND SITE VISIT:

See Provision 52.236-27 under section 00 45 00 - Representations and Certifications.

4.2 PROPOSAL SUBMISSION INSTRUCTIONS:

Offerors are invited to submit their proposal package via the PIEE Solicitation Module. Hard copy delivery or facsimile submission will not be accepted. All responses must be received by the Government by the response due date and time specified below.

In response to this request for proposal, the complete proposal shall include both the Price Proposal and the Non-Price Proposal, submitted in accordance with the above Basis of Evaluation and Submittal Requirements for Each Factor and as follows:

Offerors shall submit one (1) electronic copy of their Price Proposal and (1) electronic copy of their Non-Price Proposal as separate files via the PIEE Solicitation Module. All pages shall be numbered and appropriately tabbed, conforming to the proposal submittal requirements structure for each evaluation factor. Any pricing information included in the Non-Price proposal will not be considered. Similarly, any Non-Price information included in the Price Proposal will not be considered.

Submission, modification, revision and withdrawal of proposals shall be via the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module at <https://piee.eb.mil>. Proposals received after the proposal due date and time will not be considered or evaluated for receipt of award. It is the Offeror's responsibility to confirm that their proposal is received by the date and time posted in the solicitation and all associated amendments. The Government will not be responsible for any failure of receipt of the Proposals or any failure of the Offeror to verify receipt of the proposals. The electronic copies of the proposals shall be submitted in a format readable by Microsoft (MS) Word 2016, Adobe Acrobat, or MS Excel 2016. Please note that any submissions by any other method in place of the PIEE Solicitation Module WILL NOT be accepted and will not be evaluated. In order to submit your proposal on the PIEE Solicitation Portal, Offerors will first need to register for the PIEE 'Contract Administrator' role. For step-by-step instructions, see "Vendors - Getting Access Help" at <https://piee.eb.mil/xhtml/unauth/web/homepage/vendorGettingStartedHelp.xhtml>. Offerors are further encouraged to contact the PIEE Helpdesk at 1-866-618-5988 for additional assistance. It is strongly recommended that Offerors register well in advance of the proposal due date, so that there is ample time to resolve potential registration issues that may arise.

The offeror's proposal must include all data and information required and must be submitted in accordance with these instructions. The offeror shall be compliant with the requirements as stated herein, for non-conformance may result in an unfavorable proposal evaluation.

ALL SUBMITTALS MUST BE RECEIVED AS SPECIFIED ABOVE PRIOR TO 2:00PM Norfolk, VA local time, Thursday, 19 March 2026.
LATE SUBMITTALS WILL NOT BE CONSIDERED.

4.3 PRE-PROPOSAL INQUIRIES (PPIs):

All inquiries regarding the Request for Proposal shall be submitted electronically to Stacy Harper-Mitchell by e-mail at stacy.l.harper-mitchell.civ@us.navy.mil. Offerors are requested to use the Pre-Proposal Inquiries Submittal Form (Attachment A). Responses will be published as an amendment to the solicitation.

The Government does not intend to respond to any pre-proposal inquiries submitted less than 15 business days before the solicitation closing date in order to permit adequate time to reply to the inquiries.

4.4 CONTRACT OPPORTUNITIES:

Amendments will be posted directly to Contract Opportunities. Additionally, other postings will be made to Contract Opportunities, such as the pre-proposal inquiries (PPI) log, etc., under the Additional Documents section of the RFP. It is recommended contractors check the Contract Opportunities Additional Documents section of the RFP periodically to see if additional postings have been made. It is the contractor's responsibility to check Contract Opportunities for all postings.

4.5 SPECIAL JOINT VENTURE (JV) REQUIREMENTS

NOTE #1: FOR THE PURPOSES OF THIS SOLICITATION A JOINT VENTURE REFERS TO A LEGAL ENTITY IN THE NATURE OF A CORPORATION, CONSORTIUM OR PARTNERSHIP - COMPRISED OF TWO OR MORE PERSONS OR ENTITIES, IN WHICH PROFITS, LOSSES AND CONTROL ARE SHARED, AND THERE IS JOINT LIABILITY FOR DEBT BETWEEN ALL THE PERSONS AND/OR ENTITIES, WHICH IS FULLY LEGALLY INCORPORATED TO DO BUSINESS AS A SINGLE ENTITY IN THE JURISDICTION FROM WHICH IT IS FORMED.

THE JOINT VENTURE MUST PROVIDE ONE (1) CAGE CODE FOR THE JOINT VENTURE ITSELF, ONE (1) UEI NUMBER FOR THE JOINT VENTURE ITSELF, AND ONE (1) UEI NUMBER FOR EACH MEMBER COMPRISING THE JOINT VENTURE. THE JOINT VENTURE MUST BE REGISTERED IN THE SYSTEM FOR AWARD MANAGEMENT (SAM) USING THE NAME OF THE JOINT VENTURE.

JV offerors shall provide with their proposal a notarized legal document that establishes the JV. The JV Agreement shall take effect upon the submission of the proposal and remain irrevocable until one (1) year after the work has been finally inspected and accepted by the Government. Submission of the notarized legal document that establishes the JV shall be furnished with the price proposal in its original language version along with a certified English translation of the notarized JV. The Joint Venture must be formed and valid at the time of submission of the proposal. The validated notarized legal document must include language that each member of the JV will be jointly and severally liable for the performance of the whole contract and will be incorporated into the contract award if award is made to the JV.

Only offers from Prime Contractors and Joint Ventures (JV) will be accepted.

1. The Joint Venture Agreement shall include, at a minimum, the following:

- (a) Name of firms that form the JV and the name of the JV.
- (b) Name and title of the corporate officials signing on behalf of each party.
- (c) Solicitation number.
- (d) Description of the responsibilities in terms of work category for each member (for example: Firm A performing 100% of ____)
- (e) The statement "The composition and structure of the JV will remain unchanged from award to one (1) year after the work has been finally inspected and accepted by the Government."
- (f) Date of issuance of the agreement and notarized signature of the corporate officials signing on behalf of each party.
- (g) Statement that each member of the JV will be jointly and severally liable for the performance of the entire contract.
- (h) Statement under oath stating that the Joint Venture (JV) is in compliance at the time of proposal submission with all applicable laws, rules, and regulations. This statement must be signed under oath by all members comprising the Joint Venture.
- (i) Statement identifying whether the JV is a vertical or horizontal arrangement; and
- (j) Statement that the JV is NOT a prime-subcontractor relationship.

2. The U.S. Government reserves the right to review the actual JV Agreement to determine its basis and compliance with the applicable laws. Any internal agreements affecting the internal composition of the existing JV and its potential liabilities in relation to the contract (performance guarantee, insurance, etc.) will be sent to the Contracting Officer to provide notice of the same. Any change in the composition of the JV will require the JV to formally request a Novation Agreement in accordance with FAR 42.12, which will be approved/disapproved at the discretion of the Contracting Officer.

Section 00 70 00 - Conditions of the Contract

Additional Information/Notes

The following clauses were modified:

52.211-12Liquidated Damages-Construction.Sep 2000 hereby reads as follows:

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \$20,000 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause, \$20,000 for each calendar day.

(End of clause)